

HOUSE BILL No. 1275

DIGEST OF INTRODUCED BILL

Citations Affected: IC 24-4-22.

Synopsis: Sale of hemp containing products. Provides that a person selling certain hemp products may not permit an individual less than 21 years of age to enter the retail premises, and makes a violation a Class C infraction.

Effective: July 1, 2026.

Commons, Bascom, Prescott

January 6, 2026, read first time and referred to Committee on Public Policy.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1275

A BILL FOR AN ACT to amend the Indiana Code concerning criminal law and procedure.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 24-4-22-3, AS ADDED BY P.L.153-2018, SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. **(a) This section applies only to low THC hemp extract containing:**

- (1) delta-8 THC;**
- (2) delta-10 THC;**
- (3) hexahydrocannabinol (HHC);**
- (4) tetrahydrocannabinol acetate ester (THCo);**
- (5) tetrahydrocannabinolic acid (THCA);**
- (6) tetrahydrocannabiphorol (THCp); or**
- (7) tetrahydrocannabivarin (THCv).**

(a) (b) Except as provided in subsection (b); (f), a person may sell low THC hemp extract to which this section applies at retail only if all of the following apply:

- (1) The packaging complies with the requirements of IC 24-4-21-4.**
- (2) The person prohibits an individual who is less than**



twenty-one (21) years of age from entering the person's retail establishment.

(3) The person conspicuously displays, on or near every entrance to the person's retail establishment, a sign in boldface type that states "NOTICE: It is unlawful for a person less than twenty-one (21) years old to enter this establishment."

(c) A person that violates this section commits a Class C infraction.

(d) Notwithstanding IC 34-28-5-4(c), a civil judgment for an infraction committed under this section must be imposed as follows:

(1) If the person at that specific business location has not been issued a citation or summons for a violation of this section in the previous one (1) year, a civil penalty of up to four hundred dollars (\$400).

(2) If the person at that specific business location has had one (1) citation or summons issued for a violation of this section in the previous one (1) year, a civil penalty of up to eight hundred dollars (\$800).

(3) If the person at that specific business location has had two (2) citations or summonses issued for a violation of this section in the previous one (1) year, a civil penalty of up to one thousand four hundred dollars (\$1,400).

(4) If the person at that specific business location has had three (3) or more citations or summonses issued for a violation of this section in the previous one (1) year, a civil penalty of up to two thousand dollars (\$2,000).

A person may not be issued a citation or summons for a violation of this section more than once every twenty-four (24) hours for each specific business location.

(e) The following defenses are available to a person accused of violating subsection (b)(2):

(1) The individual produced a driver's license bearing the individual's photograph showing that the individual was at least twenty-one (21) years of age.

(2) The individual produced a photographic identification card issued under IC 9-24-16-1 or a similar card issued under the laws of another state or the federal government showing that the individual was at least twenty-one (21) years of age.

(3) The appearance of the individual was such that an ordinary prudent person would believe that the individual



1 was not less than thirty (30) years of age.

2 (4) The individual transported or delivered goods to the
3 person within the scope of the individual's employment.

4 (f) This section does not prohibit the sale or dispensing of low
5 THC hemp extract to an individual at least twenty-one (21) years
6 of age at a pharmacy or health care facility (as defined by
7 IC 16-18-2-161(a)).

8 (b) Before July 1, 2018, a person may sell low THC hemp extract at
9 retail even if the packaging does not comply with the requirements of
10 IC 24-4-21-4.

11 SECTION 2. IC 24-4-22-4 IS REPEALED [EFFECTIVE JULY 1,
12 2026]. Sec. 4: This section applies after June 30, 2018. A person who
13 violates section 3 of this chapter commits a Class C infraction.
14 However, the violation is a Class B infraction if the person has one (1)
15 prior unrelated judgment for a violation of section 3 of this chapter; and
16 a Class A infraction if the person has two (2) or more prior unrelated
17 judgments for a violation of section 3 of this chapter. These penalties
18 are in addition to any criminal penalties that may be imposed for
19 unlawful possession or distribution of a controlled substance.

